



CHAPTER iv.

An Act to authorise the company of proprietors of the Birmingham Canal Navigations to close their wharf known as the Old Wharf in the city of Birmingham and to sell the same and the site thereof and for other purposes. A.D. 1926.
[16th June 1926.]

WHEREAS by an Act passed in the fifth year of William the Fourth chapter thirty-four intituled “ An Act to consolidate and extend the powers and provisions of the several Acts relating to the Birmingham Canal Navigations ” the company of proprietors of the Birmingham Canal Navigations (hereinafter referred to as “ the Company ”) were incorporated and divers canals and other works and real and personal estate and effects were vested in and authorised to be acquired by and divers powers were conferred on the Company :

And whereas by the Acts of the second and third years of Victoria chapter sixty-one the third year of Victoria chapters twenty-four and fifty-six the seventh year of Victoria chapter eleven the ninth and tenth years of Victoria chapter two hundred and sixty-nine the seventeenth and eighteenth years of Victoria chapter one hundred and twelve the eighteenth and nineteenth years of Victoria chapter one hundred and twenty-one the twenty-first year of Victoria chapter twenty-seven the twenty-fourth and twenty-fifth years of Victoria

A D. 1926. — chapter seventy-four the thirty-third and thirty-fourth years of Victoria chapter sixty and the fifty-sixth and fifty-seventh years of Victoria chapter one hundred and forty-nine further powers were conferred on the Company :

And whereas the wharf of the Company situated in the city of Birmingham known as the Old Wharf and works and property connected therewith and a portion of the canal leading therefrom are no longer necessary for the purposes of navigation of the canal of the Company or required for the purposes of the Company :

And whereas the lord mayor aldermen and citizens of the city of Birmingham are empowered to acquire lands for the benefit improvement or development of the said city :

And whereas the said wharf and portion of the canal are situated in the centre of the city of Birmingham and it would facilitate the development of the said city and be of advantage to the public and the Company if the said wharf and portion of the canal were closed and all the duties and obligations of the Company and the rights of the public therein were to cease and be extinguished :

And whereas it is expedient that the other provisions in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title and citation. 1. This Act may be cited as the Birmingham Canal Navigations Act 1926 and this Act and the Canal Acts as hereinafter defined may be cited together as the Birmingham Canal Navigations Acts 1835 to 1926.

Interpretation. 2. In this Act the following words and expressions have the meanings hereby assigned to them :—

“ The Company ” means the company of proprietors of the Birmingham Canal Navigations ;

“ The corporation ” means the lord mayor aldermen and citizens of the city of Birmingham; A.D. 1926.
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“ The city ” means the city of Birmingham;

“ The Canal Acts ” means the Acts 5 William IV. chapter xxxiv. 2 and 3 Victoria chapter lxi. 3 Victoria chapters xxiv. and lvi. 7 Victoria chapter xi. 9 and 10 Victoria chapter cclxix. the Birmingham Canal Navigations Act 1854 the Birmingham Canal Navigations Act 1855 the Birmingham Canal Navigations Act 1858 the Birmingham Canal Navigations Act 1861 the Birmingham Canal Navigations Act 1870 and the Birmingham Canal Navigations Act 1893;

“ The Old Wharf ” means that part of the property and undertaking of the Company known as the Old Wharf situated in the city and being in or near Paradise Street Suffolk Street Easy Row Broad Street and Bridge Street and that portion of the canal extending from the Old Wharf under and for a distance of forty-six feet or thereabouts westward of the bridge carrying Bridge Street over the canal and the Company’s interest in such bridge together with all towing-paths roads accesses banks laybyes basins wharfs warehouses buildings culverts drains and other works property and conveniences connected with the Old Wharf and portion of canal aforesaid now belonging to and vested in the Company by or acquired under the powers of the Canal Acts.

3. On or at any time after the passing of this Act the Old Wharf may be closed whereupon all rights of user and other rights of navigation over or upon the Old Wharf as part of the Company’s undertaking shall cease and be extinguished and the Company shall be by virtue of this Act released from all duties and obligations to keep and maintain the Old Wharf in working condition as part of the Company’s undertaking and to preserve the supplies of water to the same and from all duties and obligations to construct repair or maintain the Old Wharf and any bridge arch tunnel road path culvert

Power to
close Old
Wharf.

A.D. 1926. — drain or other work or convenience over under across or upon or connected therewith.

Extinguishing rights of way.

4. Upon the closing of the Old Wharf all rights of way and other easements or rights in over along or across the Old Wharf and any bridges and other works connected therewith shall be and are hereby extinguished other than easements and rights in respect of drains or sewers laid in or under the Old Wharf and any easements or right of light over the same existing at the passing of this Act.

Power to sell Old Wharf.

5. After the closing of the Old Wharf the Company may sell the same to the corporation or any other corporation company or person for such price on such terms and subject to such conditions as have been or may be agreed between the Company and the purchasers.

For protection of London Midland and Scottish Railway Company.

6. Nothing in this Act contained shall prejudice or affect the rights and interests of the London Midland and Scottish Railway Company (in this section referred to as "the railway company") in or under the Old Wharf in connection with their railway under the Old Wharf and the obligation of the railway company under the London and Birmingham Railway and Birmingham Canal Arrangement Act 1846 and the Canal Acts or any other Acts to guarantee interest on the capital of the Company.

Cancellation of agreement with Postmaster-General.

7. As from the date of the closing of the Old Wharf by the Company under the provisions of this Act the agreement dated the fourth day of February one thousand eight hundred and seventy-four between the Company of the one part and the Right Honourable Lyon Playfair C.B. then Her late Majesty's Postmaster-General on behalf of Her late Majesty of the other part shall cease to have effect with reference to the Old Wharf.

Application of moneys.

8. Moneys received by the Company under the provisions of this Act may be applied to the purposes of their undertaking or invested in trust securities pending the utilisation thereof by the Company but as regards money in the nature of capital only to purposes to which capital is properly applicable and the Company may apply any of the funds belonging to them or

which they have power to raise to the payments required or authorised to be made by them under the provisions of this Act or otherwise to the purposes thereof. A.D. 1926.
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9. The Company shall in every year within three months after the close of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their undertaking. Annual accounts to be furnished to Ministry of Transport.

10. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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